

Comparative indemnity and apportionment of fault are remedies that apply to joint tortfeasors: “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against the defendant for that amount.” (Civ. Code § 1431.2, subd. (a).) “It is well-settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff’s injury.” (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036.)

The Court’s confusion with respect to this cause of action arises primarily from the following paragraph of the Cross-Complaint:

Cross-Complainant contends that she is in no way legally responsible for the events giving rise to Plaintiffs’ causes of action, or legally responsible in any other manner for the damages allegedly sustained by Plaintiff. However, if as a result of the matters alleged in Plaintiffs’ operative Complaint, this Cross-Complainant is held liable for all or any part of the claim for damages asserted against it by Plaintiff, Cross-Defendants, and each of them, to the extent that their fault was a proximate cause of Plaintiff’s damages and/or losses, are responsible for said damages and/or losses in proportion to each Cross-Defendants’ comparative negligence and this Cross-Complainant is entitled to a determination of several liability

(XC at ¶ 119)

The Nists are both Plaintiffs and Cross-Defendants. The legal theory under which they would be held jointly liable with Farrell for their own damages in the underlying case is unclear, and Cross-Complainant has provided no authority in opposition that might inform the Court.

The Demurrer to the cause of action for comparative indemnity is **sustained**, with leave to amend.

(15) declaratory relief

Cross-Defendant argues that the declaratory relief action “fails to allege a present, actual controversy between the parties requiring judicial declaration.” (Dem. at 7:1-2.)

The elements of a cause of action for declaratory relief are: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to rights or obligations of a party.” (*Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 235; see also *Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546; *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.)

Here, Cross-Complainant has alleged a controversy between the parties with the respect to her Property (see *supra*). The Demurrer to this cause of action is **overruled**.

14. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

*HEARING ON MOTION IN RE: STRIKE PORTIONS OF SHANNA FARRELL'S CROSS-COMPLAINT

FILED BY: NIST, WILLIAM G

TENTATIVE RULING:

Before the Court is Cross-Defendant William G. Nist and Mari K. Nist (collectively, "Cross-Defendants")'s motion to strike portions of the Cross-Complaint filed by Cross-Complainant Shanna M. Farrell ("Cross-Complainant"). Cross-Defendant seeks to strike the first, second, third, fourth, fifth, eighth, ninth, eleventh, twelfth, fourteenth, and fifteenth causes of action from the Cross-Complaint.

For the following reasons, the motion is **denied** for failure to comply with California Rule of Court, Rule 3.1322(a).

Analysis

CCP § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

As a threshold issue, the Motion fails to comply with California Rule of Court 3.1322(a) ("A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion to strike an entire paragraph, cause of action, count, or defense.").

Cross-Defendant's notice states that each challenged cause of action "contains irrelevant, false, or improper matter due to conclusory legal language and false posits of fact." However, the notice of motion does not quote in full the portions sought to be stricken as required by CRC Rule 3.1322(a).

Accordingly, the motion is **denied**.

15. 9:00 AM CASE NUMBER: N25-0942

CASE NAME: AMANA ENTERPRISE, LLC VS. ELLIE ROUHANI

*HEARING ON MOTION IN RE: AWARD OF ATTORNEY'S FEES AND COSTS

FILED BY: KATOUI, ROOZBEH

TENTATIVE RULING:

Summary

Defendant Ellie Rouhani, Roozbeh Katouzi, and Super Tehran Market, LLC ("Defendants") Motion for Award of Attorney's Fees and Costs against Plaintiff Amana Enterprise, LLC ("Plaintiff") is **granted** as set forth herein.